		"researching and calendaring all deadlines"].) Otherwise, after review of moving parties' billing records (Ex. 11 to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. The motion is DENIED as to costs. Moving party has already filed a Memorandum of Costs (Ex. 12 to motion; ROA 51), and no motion to tax was filed. Moving party provides no evidence of costs incurred other than those included in the Memorandum of Costs. (See *Smalley v. Subaru of America, Inc.* (2022) 87 Cal.App.5th 450, 457 ["In a claim under the Song-Beverly Act ... for purposes of that statute, expenses encompasses out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5;" other internal citations omitted.) To award the same costs for the instant motion as listed in the Memorandum of Costs, would be a double recovery. Moving party shall give notice.
5	**Hoag Memorial Hospital Presbyterian vs. Monarch Health Plan, Inc.** **2026-01546114**	**Demurrer to First Amended Complaint** Defendants Monarch Health Plan, Inc., Optum Care Management, LLC and Optum, Inc.'s demurrer to Plaintiff Hoag Memorial Hospital Presbyterian's First Amended Complaint is SUSTAINED in part. (Code Civ. Proc. §430.10, subd. (e).) The special demurrer for uncertainty is OVERRULED. (Code Civ. Proc. §430.10, subd. (f).) The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that Defendant cannot reasonably respond. (*Khoury v. Maly's of California Inc.* (1993) 14 Cal.App.4th 612, 616.) Defendants argue a special demurrer lies because the allegations of the FAC are made against all Defendants collectively. This defect in the pleading does not preclude any Defendant from intelligently responding to the FAC. The allegations of the FAC can be clarified through discovery. Third Cause of Action for Quantum Meruit: Defendant **Monarch Health Plan, Inc.'s** demurrer to the **Third Cause of Action for Quantum Meruit** is **OVERRULED.** Monarch argues that a cause of action for quantum meruit cannot be stated because the FAC alleges the existence of an enforceable contract. Since this cause of action is pleaded alternative, it may be validly pleaded notwithstanding the allegation of a binding contract between Plaintiff and Monarch. (See *Newport Harbor*

		Ventures, LLC v. Morris Cerullo World Evangelism (2016) 6 Cal.App.5th 1207, 1222-1223 ["When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations … Thus, a plaintiff may plead inconsistent causes of action for breach of contract and common count].) Defendants **Optum Care Management, LLC and Optum, Inc.'s (Optum Defendants)** demurrer to the **Third Cause of Action for Quantum Meruit** is **SUSTAINED.** (Code Civ. Proc. §430.10, subd. (e).) Plaintiff shall have 20 days to file a Second Amended Complaint to address the deficiencies outlined below. Allegation of new or additional causes of action is not within the scope of leave to amend. Should Plaintiff seek to allege a new cause of action, Plaintiff shall first seek leave of court via noticed motion. The elements of a cause of action for quantum meruit are: (1) the plaintiff acted pursuant to an express or implied request for services by the defendant, and (2) the services rendered benefited the defendant. (*Day v. Alta Bates Medical Center* (2002) 98 Cal.App.4th 243, 248.) Plaintiff asserts that the Optum Defendants are liable under a theory of quantum meruit on the ground that the Optum Defendants benefited from causing Monarch to clawback payments from Plaintiff for services rendered to Monarch's members. These allegations do not establish that any services rendered by Plaintiff to Monarch's members benefited the Optum Defendants. Any benefit conferred upon the Optum Defendants by Plaintiff was merely incidental to the Optum Defendants' relationship with Monarch. Accordingly, the demurrer to this cause of action is SUSTAINED. <u>Fourth Cause of Action for Intentional Interference with Contract as to the Optum Defendants:</u> Defendants **Optum Care Management, LLC and Optum, Inc.'s (Optum Defendants)** demurrer to the **Fourth Cause of Action for Intentional Interference with Contract** is **SUSTAINED.** (Code Civ. Proc. §430.10, subd. (e).) Plaintiff shall have 20 days to file a Second Amended Complaint to address the deficiencies outlined below. Allegation of new or additional causes of action is not within the scope of leave to amend. Should Plaintiff seek to allege a new cause of action, Plaintiff shall first seek leave of court via noticed motion.

The elements of a cause of action for intentional interference with contractual relations are: (1) a valid contract between the complainant and a third party; (2) the defendant's knowledge of the contract; (3) Intentional conduct on the part of the defendant that was intended to or would necessarily result in a breach or disruption of the contractual relationship; (4) an actual breach or disruption of the contractual relationship; and (5) resulting damages. (See *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 55.)

Defendant argues that Plaintiff's cause of action fails because (1) the FAC admits that the Optum Defendants were not a stranger to the underlying contract that was allegedly interfered with and (2) the FAC fails to allege the element of intent.

Plaintiff argues that the FAC alleges the Optum Defendants are strangers to the contract because the FAC alleges the Optum Defendants acted beyond the scope of their agency by initiating and conducting the retrospective claim audits and providing Monarch with a pretense to seek recovery of payments made to Plaintiff.

Generally, the representative of a contracting party may not be held liable for intentional interference with the contractual relationship. (See *Mintz v. Blue Cross of California* (2009) 172 Cal.App.4th 1594, 1605-1606.) Plaintiff's attempt to distinguish *Mintz* is not persuasive. Plaintiff reasons that the Optum Defendants necessarily exceeded the scope of their representation of Monarch by conducting audits and causing Monarch to recoup alleged overpayments made to Plaintiff. Plaintiff argues that since the Letter of Agreement (LOA) does not contemplate retroactive alterations to the agreed upon payment terms, Optum could not possibly have been acting as the representative of Monarch in causing Monarch to breach the LOA. This strained reasoning is not at all persuasive. If Plaintiff's position were adopted, the general rule against liability of the representative of a contracting party for intentional interference would be turned on its head.

Moreover, the allegations of the FAC indicate that the Optum Defendants were not strangers to the contract. The alleged wrongful conduct attributed to the Optum Defendants is within the scope of the administrative services Optum provided to Monarch with respect to the LOA. In fact, the conduct attributed to the Optum Defendants is the same conduct Plaintiff asserts is the breach of the contract. While Plaintiff alleges the legal conclusion

		that the Optum Defendants were strangers to the LOA, the facts alleged in the FAC do not warrant such a conclusion. Accordingly, the demurrer to this cause of action is SUSTAINED. *Case Management Conference is set December 11, 2026 at 8:30 a.m. in Department C44.* Defendants shall provide notice of this ruling.
6	**Kiani vs. Koffey** **2025-01484637**	**Motion to Seal (ROA 247)** Plaintiff Joe E. Kiani's Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Furthermore, nothing in the Discovery Act requires a party seeking the imposition of monetary sanctions to disclose the negotiated hourly rate between the attorney and client. The relevant inquiry for purposes of determining the amount of monetary sanctions is the reasonable value of the time expended in conjunction with the discovery motion practice. Thus, all Plaintiff is called to do is identify facts justifying the amount of monetary sanctions sought. The particular hourly rate agreed upon between Kiani and his lawyers is not necessary information to make such a determination. The clerk is directed to return the unredacted declaration of Youzhihang Deng in support of the Motion to Compel Further Responses to Requests for Production and for Sanctions (ROA 234) to Plaintiff. Plaintiff has 10 days to file a revised declaration without redactions that either (1) provides the information regarding the hourly rates charged and time spent on the motions or (2) provides some other factual basis for the Court to assess the request for monetary sanctions. Plaintiff shall provide notice.
7	**Kiani vs. Masimo Corporation** **2024-01426785**	**Motion to Seal (ROA 512)** Plaintiff Joe E. Kiani's Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Furthermore, nothing in the Discovery Act